

7. 9:00 AM CASE NUMBER: C25-00144
CASE NAME: YONGCHAN PARK VS. MICHAEL YANG
*HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS AS TO JIHOON YOU
FILED BY: YANG, MICHAEL
TENTATIVE RULING:

See Line 8.

8. 9:00 AM CASE NUMBER: C25-00144
CASE NAME: YONGCHAN PARK VS. MICHAEL YANG
*HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS AS TO YONGCHAN PARK
FILED BY: YANG, MICHAEL
TENTATIVE RULING:

Before the Court is Defendant Michael Yang and Minhe, Inc. (collectively, “Defendants”)’s Motion for Judgment on the Pleadings (“MJOP”). The MJOP relates to Plaintiff Yongchan Park (“Plaintiff”)’s “Notice of Plaintiff/Respondent Yonchan Park’s Intent to Seek Additional Claims at Trial.”

Defendants purport to bring this motion pursuant to California Rule of Court § 3.1112 and Code of Civil Procedure § 439. Rule 3.1112 covers the required papers for motions and papers in support and CCP § 439 is the meet and confer statute. No reference is made in the motion to the actual statute authorizing judgment on the pleadings, Code of Civil Procedure § 438.

For the following reasons, the MJOP is **denied**.

Analysis

The instant case is an appeal of the Labor Commissioner’s ruling in WC-CM-761270, WC-CM-76127, and WC-CM-762296 pursuant to Labor Code § 98.2(a) by Defendants. (Labor Code § 98.2 “[P]arties may seek review by filing an appeal to the superior court, where the appeal shall be heard de novo”.) In response, Yongchan Park and Jihoon You filed notices of intent to seek additional claims at trial. In their notices, Park and You reasserted their wage claims they had raised before the Labor Commissioner and added new claims, including claims for minimum wages, overtime premium compensation, provision of unpaid meal periods, provision of paid rest periods, waiting time penalties, FLSA claims, violation of 18 USC § 1595, and violation of Labor Code § 970. (See Notice of Plaintiff/Respondent Yongchan Park’s Intent to Seek Additional Claims at Trial; see Notice of Plaintiff/Respondent Jihoon You’s Intent to Seek Additional Claims at Trial; see also *Murphy v. Kenneth Cole Productions, Inc.* (2007) 40 Cal.4th 1094, 1120 (*Murphy*) [trial court has discretion to allow employee to raise additional claims in response to employer’s Berman appeal].)

In a recent opinion, the California Supreme Court reiterated that in the context of an appeal from a Berman hearing “the trial court may, in its “sound discretion,” allow an employee to raise additional claims that the Labor Commissioner did not consider during the administrative stage of the Berman process. (*Murphy, supra*, 40 Cal.4th at p. 1120; see id. at p. 1118 [“Trial courts are equipped to weigh the various considerations” associated with the possible addition of a claim, “e.g., whether the claims